

From: [Secretary](#)
To: mfranklin@therightmove4u.com
Cc: [Muhammad Rana](#); [Rachel Dickon](#); [Secretary](#)
Subject: FW: Docket No. 19-03
Date: Thursday, August 15, 2019 4:12:22 PM

Dear Ms. Franklin,

I am in receipt of your email to Judges@fmc.gov from Tuesday, August 13, 2019. Please note that you should not send items directly to the Judge. You need to send anything about this proceeding to my office, secretary@fmc.gov. It is appropriate to cc Judges@fmc.gov. Also, all filings should also be sent for service to all other parties to the proceeding. That party is now copied on this email as well.

Your email appears to be a response to the allegations in the complaint, and will be included in the case docket accordingly.

It is true that parties in the past have found it an easier experience to obtain legal representation when involved in a proceeding before the Federal Maritime Commission. However, pursuant to 46 C.F.R. 502.22 https://www.ecfr.gov/cgi-bin/text-idx?SID=268af0f1c5268946baa3475982c1e0c1&mc=true&node=pt46.9.502&rgn=div5#se46.9.502_122, you could also choose to represent yourself in this proceeding.

To assist you, the Commission's rules for proceedings are detailed through the following link:
<https://www.ecfr.gov/cgi-bin/text-idx?SID=cd82dc5a07adebb044d1f8f3eab84391&mc=true&node=pt46.9.502&rgn=div5>

You may also wish to read closely the Judge's Initial Order:
https://www2.fmc.gov/readingroom/docs/19-03/19-03_IO.pdf/

Please let me know if you have any questions.

Thank you,

Rachel E. Dickon
Assistant Secretary
Federal Maritime Commission
Ph 202-523-5725

From: Judges <Judges@FMC.gov>
Sent: Tuesday, August 13, 2019 1:12 PM
To: Secretary <secretary@fmc.gov>
Subject: FW: Docket No. 19-03

From: Michelle Franklin <mfranklin@therightmove4u.com>
Sent: Tuesday, August 13, 2019 11:57 AM

To: Judges <Judges@FMC.gov>

Subject: RE: Docket No. 19-03

Dear Erin W. Wirth ,

Your honor,

Thank you for granting me additional time to respond, and forgive me for the unprofessional language , I am not a lawyer, and not familiar with legal terms.

Should this will continue any further , I will seek legal help but at this point I wanted to try and defend my actions.

The Right Move inc, has been providing Ocean Service since 2011 .

The years 2018-2019 , business was very slow, and we engaged in commercial shipping to try and stay afloat.

Commercial clients work on different terms of payment, and we conducted business with a “big” customer who failed to pay .

As a small company that resulted in the company need to shut down, after almost 10 years .

Mr. Rana and Myself started communicating on Jan 28 , 2019.

02/04/2019 I have provided Mr. Rana a quote for door to port service with self loading Total \$2,595.00

02/05/2019 Mr. Rana accepted the terms and conditions or agreement , for door to port only service.

02/06/2019 I have provided Mr. Rana self loading instructions, including how to properly write an Inventory list so it can be declared on the BOL.

02/07/2019 I have provided Mr. Rana his Ocean vessel details and schedule .

02/14/2019 Mr. Rana paid his shipping costs.

02/15/2019 Mr. Rana Loaded the container .

03/12 /2019– I requested a proper inventory list , as it was not received yet. Advised the customer that he shipment is due to arrive on April 3rd, and In order for me to share the BOL with him, I need the proper Inventory list .

03/25/2019 – Mr. Rana still didn't provide proper details for the BOL, so I sent a reminder.

03/27/2019 – we concluded the Inventory list as Mr. Rana kept adding items to it.

03/28/2019 – Mr. Rana advised that he hired an agent to assist with the custom clearance and the process in Pakistan, and Asked to change the Bill of lading again to reflect that . **–an agent should have been involved much earlier in the process as Custom clearance in Pakistan is no joke.**

03/31/2019 – Mr. Rana started his verbal abuse and threatening because he failed to understand

that changing a BOL , especially last minute is out of my hands, and take the SSL few days to process.

04/04/2019 Mr. Rana requested additional changes to the Bill of lading , and I have submitted the changes and sent him a house BOL as well to expedite the process.

04/05/2019 – I was informed that the freight was on hold, and It seems as the payment that was submitted was applied towards an old shipment that was still pending.

04/05/2019 – same day , I had advised the customer, that he should pay directly at destination , and he has two options, wait few days to be compensated by the company , or file a claim against the company bond (I hva provided him wit the claim form , the FMC details etc to make sure he understand his opitions) . I wanted him to know we take full responsibility .

04/05/2019 – the customer understood and agreed to pay and get refunded later .

04/10/2019 Mr. Rana confirmed he paid the ocean directly.

04/15/2019 – Follow up E-mail form myself to Mr. Rana to make sure all is going well for him.

Ever Since , the customer kept asking for more money to be refunded, for all sorts of local port fees, demurrage and storage and additional costs that are in no way related to the failure to pay the ocean in time.

He was accusing, abusive and threatening throughout the last steps of the process.

The Company failure to pay the ocean is not related in anyway with Mr. Rana local charges, port fees, and any accommodation costs in Pakistan. Process in Pakistan is difficult and long regardless, especially when everything is done last minute.

Mr. Rana needed to change the BOL several times in the last minute resulted in BOL correction fees, which I gladly took upon myself , because that's what I do , I always try to help the customers, it was never about the money for me (this was of course before I realized the SSL applied the payment towards another shipment) .

I have educated Mr. Rana about the process as much as I could, I stayed on top of things for him because I knew he doesn't understand the process properly , I urged him to find an agent in Pakistan to Help him, because I knew the process is long and difficult .

Even though there was a payment failure, I was with the customer , making sure it is all being resolved in a timely manner to avoid storage and demurrage etc.

There was no negligence, or fraud in anyway .

I offered to pay Mr. Rana back the ocean costs of course, as well as some of the demurrage days (Shipment arrived on April 3, On April 5th customer agreed to pay the ocean at destination, but only paid it on April 10 resulting in additional delays)

Mr. Rana kept asking me to pay his port fees, which are excluded and would have applied regardless.

Finally Mr. Rana provided me a family member bank details to wire the money , and due to the nature of our communication at that point , I felt uncomfortable doing so.

Mr. Rana was one of the last few customers we had to finish before we chose to close the company and surrender our FMC license .

Almost 10 years of doing good, helping people, educating them and being there for them while they are going through such life changing experiences was all I ever asked for !

It was never about making money , It was about finding something I am good at and enjoy while helping people every day .

I never neglected Mr. Rana, I was there every step of the way , on weekends and nights. I failed him, by not paying the ocean , but offered several times to compensate him (we just didn't agree on the amount)

Mr. Rana saw an opportunity to make it something that it is not, and obviously he is very smart and resourceful , but at no moment in my entire shipping carrier, I have done anything that is not 100% dedicated and truthful !

I thank you for your time reading this, I know it is emotional rather than factual , but that's me, I think with my heart .

Of course I would appreciate any help with trying to resolve this , but I strongly feel that the customer is trying to take advantage of the situation , and I am afraid I will not agree to that .

Michelle Franklin
646-764-9411

From: Judges <Judges@FMC.gov>

Sent: Thursday, July 25, 2019 3:45 PM

To: muhammad.rana@rocketmail.com; Michelle Franklin <mfranklin@therightmove4u.com>

Subject: RE: Docket No. 19-03

Good Afternoon,

Please see attached an "Order to Show Cause," issued by the Honorable Erin M. Wirth, being

served today in Docket No. 19-03. A brief statement acknowledging receipt of this document would be greatly appreciated.

Thank you,

Office of Administrative Law Judges
Federal Maritime Commission
800 North Capitol Street, NW
Washington, DC 20573-0001
Tel: 202-523-5750
Fax: 202-566-0042
Email: judges@fmc.gov